		consecutive weeks in a newspaper of general circulation in the county of seizure. (*Id*., § 11488.4, subd. (e).)" (*People v. Mendocino County Assessor's Parcel No. 056-500-09* (1997) 58 Cal.App.4th 120, 125.) Here, the two "Receipt for Seizure and Personal Notice of Intended Forfeiture" submitted identify real parties in interest Pedro Nicolas Zavala (Zavala) and Brenda Gonzalez Medina (Medina). Zavala and Medina were served with the receipts on January 9 and January 16, 2025. Accordingly, Health and Safety Code section 11488.4, subdivision (c), required Zavala and Medina each to be served with process of the petition initiating these proceedings. That generally requires personal service, but there are alternative means available upon a sufficient showing. Here, the declarations submitted with the motion admitted Petitioner was unable to personally serve either Zavala or Medina with the petition initiating these proceedings. Petitioner therefore sent copies of the petition to Zavala and Medina by certified mail at their last known address. Unfortunately, although service by certified mail is an authorized method for service of process on a defendant located in another state if the defendant signs and returns a return receipt (Code Civ. Proc., §§ 415.40, 417.20), that is not an acceptable means of service within the State of California. Service by mail within the state requires the party being served to execute a notice and acknowledgment of service. No such acknowledgement is presented in this case. As a result, neither Zavala nor Medina have been properly served in these proceedings and therefore the court cannot grant this motion at this time. The hearsay statements allegedly waiving any claim to the funds at issue is not sufficient. Based on the foregoing, the petition is **CONTINUED** as set forth above for proper service on Zavala and Medina. Petitioner is ordered to file a proper proof of service at least five court days before the continued hearing date. Petitioner's counsel is ordered to give notice of this ruling.
12.	***Litrinium, Inc. vs. Adas*** *2021-01210846*	No tentative ruling will be posted
13.	***Tidrick vs. FCA US LLC*** *2021-01188037*	Before the court are the following two motions filed by plaintiff Ashley Tidrick (Plaintiff): (1) motion for attorney fees, costs, and expenses filed on May 9, 2023, seeking attorney fees, costs, and expenses incurred from case

initiation through settlement and including the fee motion (ROA 156), and (2) motion for attorney fees, costs, and expenses following appeal filed on February 27, 2026, seeking attorney fees, costs, and expenses incurred on the appeal from the trial court's earlier decision on motion no. 1 (ROA 244).

As more fully set forth below, motion no. 1 is **GRANTED** and Plaintiff is awarded a total of trial court level attorney fees, costs, and expenses of **$77,924.03** against defendant FCA US LLC (Defendant). Similarly, motion no. 2 is **GRANTED** and Plaintiff is awarded a total of **$80,015.21** in appellate attorney fees, costs, and expenses against Defendant.

<u>Motion No. 1: Trial Level Attorney Fee Motion</u>

The parties settled this Song-Beverly case before trial with Defendant agreeing to pay reasonable attorney fees, costs and expenses to Plaintiff as the prevailing party. As such, there is no dispute among the parties as to Plaintiff's right to recover her attorney fees, costs, and expenses. Rather, the dispute focuses on what is the reasonable amount of attorney fees, costs, and expenses.

By this motion, Plaintiff seeks a total of $82,719.33, which is comprised of (1) $69,775 in attorney fees (including time spent preparing this motion); (2) an additional $4,500 in attorney fees for reviewing the opposition to this motion, drafting a reply, and attending the hearing; and (3) $8,444.33 in costs and expenses.

On August 21, 2023, the previously assigned judicial officer awarded Plaintiff $15,000 in attorney fees and costs. (ROA 176.) Plaintiff appealed, and the Court of Appeal reversed. (ROA 184, 207; *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147 (Tidrick).) On September 23, 2025, remittitur was issued, remanding the matter to the trial court with directions to "(1) award [Plaintiff] reasonable attorney fees, determined by applying the lodestar method, including employing the prevailing hourly rate for consumer attorneys in Orange County; and (2) to clarify whether [the trial court's] original order awarded [Plaintiff] her costs, and if it did not, to make an additional award of such costs." (Id. at p. 1160.)

The Song-Beverly Act provides for attorney fees, costs, and expenses to the prevailing party in a lemon law case: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794, subd. (d).)

“Determining a reasonable attorney fee award in Song-Beverly Act cases ‘“ordinarily begins with the ‘lodestar,’ [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.”’ [Citation.] The lodestar may ‘then be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided.’ [Citation.] The lodestar method ‘anchors the trial court’s analysis to an objective determination of the value of the attorney’s services,’ and thus ensures the amount awarded is not arbitrary. [Citation.]” (*Tidrick*, *supra*, 112 Cal.App.5th at pp. 1157-1158.)

“The Song-Beverly Act’s attorney fee provision ‘“requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited, and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of ‘showing that the fees incurred were “allowable,” were “reasonably necessary to the conduct of the litigation,” and were “reasonable in amount.”’”’ [Citation.]” (*Tidrick*, *supra*, 112 Cal.App.5th at p. 1158.)

<u>*Hourly Rates*</u>*:* “The reasonable hourly rate is that prevailing in the community for similar work.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see also *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260 [“reasonable market value” of counsel’s services is measure of reasonable hourly rate].) The relevant “community” is generally based on where the services were rendered, i.e., where the court is located. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242-1243.) “Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community

in Orange County." (*Tidrick*, *supra*, 112 Cal.App.5th at p. 1157.)

The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009; *569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437.) The court may consider various other factors when determining a reasonable hourly rate, including the attorney's skill and experience, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. (*Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632.)

Here, Plaintiff seeks hourly rates for partner Nancy Zhang ranging from $435 to $500 over the life of the litigation; for associates Joshua Liu and Sean Crandall ranging from $415 to $475; and for the paralegal ranging from $175 to $200. Based on the evidence provided by both parties, and on the court's own experience, the court finds the hourly rates sought are commensurate with the respective attorney's level of skill and experience and consistent with the prevailing rates for consumer attorneys practicing in Orange County in Song-Beverly cases.

<u>*Hours Expended*</u>*:* "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396; *Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel also are "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements"].)

To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may either "attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (*Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc.* (2008) 163 Cal.App.4th 550, 563-564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Id*. at p. 564.) "When confronted with hundreds of pages of legal bills, trial courts are not required to identify each charge they find to

		be reasonable or unreasonable, necessary or unnecessary." (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 101.) "The party opposing the fee award can be expected to identify the particular charges it considers objectionable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections." (*Ibid*.) Fee award amounts are matters within the trial court's discretion because the "trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) Here, Plaintiff seeks attorney fees in the amount of $74,275 which is based on 173 hours of time spent from inception through the preparation of this motion ($69,775), plus an additional $4,500 in fees for reviewing the opposition, preparing the reply, and attending the hearing. Defendant argues the three motions to compel depositions filed by Plaintiff set to be heard after the discovery cutoff were unreasonable. However, "a plaintiff who is unsuccessful at a stage of litigation that was a necessary step to her ultimate victory is entitled to attorney's fees even for the unsuccessful stage." (*Cabrales v. County of Los Angeles* (9th Cir.1991) 935 F.2d 1050, 1053.) Based on the timing of the settlement negotiations, it cannot be said that the motions did not help Plaintiff achieve victory in this case. Defendant next argues that time spent preparing written discovery, meet and confer letters, research and the anticipated hours on this fee motion are duplicative and/or excessive. A review of the billing records, however, shows the amount of time expended on each task is generally commensurate with the task, and not duplicative. Although Defendant argues the time spent is excessive in light of Plaintiff's counsel employing "templates," the number of hours sought for the individual tasks however reflect fewer hours are being sought than would be appropriate if the work was started from scratch without templates. That is not to say that all time sought was reasonably expended. Although Orange County was an appropriate venue as pointed out by the Court of Appeal, Plaintiff's selection of a venue that is a considerable distance from Plaintiff, the vehicle, and the dealership does not entitled

		Plaintiff to recover lengthy travel time that was required because of that selection. For example, on September 17, 2021, attorney Liu spent 7.3 hours traveling to and from the vehicle inspection in Fresno. The court finds that amount of travel is not reasonable and Defendant should not be required to compensate Plaintiff for that time. A total of 2.0 hours for traveling to and from an inspection is more reasonable. Accordingly, the court will deduct 5.3 hours of time, based on attorney Liu's then current hourly rate of $415, for a total deduction of $2,199.50. Moreover, Defendant correctly points out certain vague time entries by attorney NZ make it difficult to determine the reasonableness of the time spent, including "[e]mail to associate." Plaintiff does not justify the time in the reply. The court therefore reduces the fee award by the following time entries: 07/9/21 (0.40), 07/22/21 (0.40), 10/08/21 (0.20), 10/26/21 (0.20), 11/15/21 (0.20), 12/27/21 (0.30), 02/16/22 (0.40), 04/20/22 (0.30), 06/27/22 (0.30), 07/15/22 (0.60), 11/17/22 (0.20), 11/22/22 (0.40), 12/01/22 (0.40), 12/06/22 (0.40), 12/29/22 (0.40), 01/27/23 (0.80), for a total of $2,595.90. The court therefore will deduct a total of $4,795.40 from the request of $74,275, which leads to a lodestar $69,479.60. The court does not find any circumstances that warrant adjustment, either upward or downward. Although Defendant argues Plaintiff unreasonably denied an early settlement offer and unnecessarily litigated this case, Plaintiff was under no obligation to accept the offer and Plaintiff ultimately obtained a settlement higher than the initial settlement offer. *Costs and Expenses:* Plaintiff seeks a total of $8,444.43 in costs and expenses. Under Civil Code section 1794, subdivision (d), as the prevailing party, Plaintiff is entitled to all "costs and expenses" that were reasonably incurred in prosecuting the case, including items beyond the statutory costs enumerated in Code of Civil Procedure section 1033.5. (*Jensen v. BMW of North Am.* (1995) 35 Cal.App.4th 112, 137-138.) Defendant does not dispute the reasonableness of the costs and expenses Plaintiff identified. The court finds all such costs and expenses to be reasonable and therefore awards the entire amount of $8,444.43. *Total Award:* When the amount of fees awarded ($69,479.60) is added to the costs and expenses awarded ($8,444.43) the total award is $77,924.03.

Based on the foregoing, the trial level motion for attorney fees, costs, and expenses is **GRANTED**, and Plaintiff is awarded a total of $77,924.03 as against Defendant.

Motion No. 2: Appellate Attorney Fees, Costs, and Expenses

As noted above, Plaintiff appealed the prior judicial officer's ruling on motion no. 1. The Court of Appeal reversed that decision and remanded the matter to this court for further proceedings. (*Tidrick*, *supra*, 112 Cal.App.5th 1147.) By this motion, Plaintiff seeks to recover attorney fees, costs, and expenses in connection with that separate appeal.

As in trial court litigation, attorney fees on appeal are recoverable if authorized by contract, statute, or law. (Code of Civ. Proc. § 1033.5, subd. (a)(10); *Serrano v. Unruh* (1982) 32 Cal.3d 621, 637; *Butler-Rupp v. Lourdeaux* (2007) 154 Cal.App.4th 918, 927.) As set forth above, the prevailing buyer on a Song-Beverly case is entitled to reasonable attorney fees, costs, and expenses under Civil Code section 1794, subdivision (d). This includes fees and costs incurred in a successful appeal. (*Karapetian v. Kia Motors America, Inc.* (C.D. Cal. 2013) 970 F.Supp.2d 1032, 1038, aff'd (9th Cir. 2016) 633 Fed. Appx. 476.) Plaintiff is the prevailing party on the appeal and is entitled to attorney fees.

Defendant does not dispute that a plaintiff who is successful on an appeal in a Song-Beverly case generally is entitled to recover their appellate attorney fees, costs, and expenses. Nonetheless, Defendant argues Plaintiff should be denied appellate fees in this case because the appeal was necessitated by an alleged judicial error—i.e., the prior judicial officer's decision to apply Fresno hourly rates and otherwise make reductions not advanced by Defendant. Defendant contends it should not be required to pay Plaintiff's appellate fees in these circumstances. Defendant, however, fails to cite any authority supporting this alleged exception to Plaintiff's statutory right to recover attorney fees. Accordingly, the court finds Plaintiff is entitled to her appellate attorney fees; the only question is what constitutes a reasonable amount of fees, costs, and expenses in this case.

As discussed above, the standard for determining reasonableness of attorney fees starts with the lodestar and the number of hours actually expended, which is then adjusted based on reasonableness considering all the

		circumstances of the case. (*Tidrick*, *supra*, 112 Cal.App.5th at pp. 1157-1158.) By this motion, Plaintiff seeks a total award of attorney fees, costs, and expenses in the amount of $189,763.81, which is comprised of (1) $137,106 in attorney fees ($81,169 for Consumer Law Experts, PC and $55,937 for Jeff Dominic Price); (2) a multiplier of 1.35 resulting in an additional $47,987.10 in attorney fees; (3) an additional $2,800 in attorney fees for reviewing the opposition to this motion, preparing a reply, and appearing at the hearing; and (4) $1,870.71 in costs and expenses. *Hourly Rates:* As stated above, the court begins its lodestar analysis by determining the reasonable hourly rate for each attorney and professional who worked on the appeal based on their experience, the prevailing rates in the Orange County legal community for work of this nature on a Song-Beverly case, and a variety of other factors identified above, including the trial court's own experience. Plaintiff seeks approval for the following hourly rates: $917 for attorney and appellate specialist Jeff Dominic Price, $560 for partner Jordan G. Cohen, $525 for partner Nancy Zhang and associate Joseph Liu, and $195 for multiple paralegals. Based on the information provided by the parties regarding the professionals' experience and prevailing rates in the community for work of this nature, as well as the court's own experience, the court finds some of these rates to be a little excessive. Mr. Price has a number of years of experience, including several as a certified appellate specialist, but he does not have any significant experience in Song-Beverly cases. Although some of the sub-issues presented were not specifically Song-Beverly issues, this case nonetheless is a Song-Beverly case. The court finds $700 to be a reasonable and appropriate hourly rate for Mr. Price in this specific case. As for attorneys Cohen, Zhang, and Liu, they have 12 to 18 years of experience, with less than 10 years of Song-Beverly experience. The fact these fees were incurred in connection with an appeal does not warrant an increase beyond their customary hourly rates and they have little to no appellate experience among them. The court finds the appropriate and reasonable hourly rates for these three attorneys to be $500. As for the paralegal time, the court finds the requested $195 hourly rate to be reasonable and

customary in the relevant community for work of the nature performed.

Hours Expended: As presented in the moving papers, Plaintiff seeks compensation for 210.1 hours of work plus an additional $2,800 in fees for reviewing the opposition to this motion, preparing a reply, and appearing at the hearing. For reference, Plaintiff sought compensation for 173 hours of time spent in the trial court as described above in connection with motion no. 1.

Specifically, Plaintiff seeks compensation for 130.7 hours performed by attorney Cohen, 61 hours performed by attorney Price, 9.3 hours performed by attorney Liu, 4 hours performed by attorney Zhang, and a total of 5.1 hours performed by paralegals.

The court is familiar with the venue issue that was presented on the appeal. It was an unsettled question of law, but it was not overly complicated or unduly time consuming. There were two positions to be presented, with the Court of Appeal to decide which controlled. Entitlement to fees was not at issue; rather, the appeal focused on the appropriate amount of fees and whether the trial court applied the correct standard and decided all necessary issues.

This court is familiar with appellate practice and what is required to pursue an appeal to completion. The court did some appellate work in private practice, and before taking the bench, also worked for seven years at the Court of Appeal.

Based on its familiarity with the issues presented, its review of the file in this case, its review of all briefs on this motion and the billing statements, and its overall experience, the court finds the number of hours performed by attorneys Price and Cohen to be excessive and unreasonable, and therefore worthy of reduction. The court also finds it is not appropriate to charge Defendants for the work Plaintiff's attorney did to request and obtain publication of the Court of Appeal's decision. Although that may have advanced the interests of counsel in their pursuit of other cases, it did not advance Plaintiff's case.

The court finds the appropriate and reasonable number of hours expended in connection with the appeal by attorney Price to be 40 hours and for attorney Cohen to be 85 hours. The court finds the number of hours sought by the other professionals—i.e., attorneys Zhang and Liu and the paralegals—to be reasonable. This includes the time spent in connection with this motion, which the court finds reasonable.

<u>Lodestar Totals and Adjustments</u>: Based on the foregoing the court finds the total lodestar and lodestar for each professional to be as follows:

Attorney Price:	40 hrs. x $700/hr. = $28,000
Attorney Cohen	85 hrs. x $500/hr. = $42,500
Attorney Liu	9.3 hrs. x $500/hr. = $4,650
Attorney Zhang	4.0 hrs. x $500/hr. = $2,000
Paralegals	5.1 hrs. x $195/hr. = $994.50
TOTAL	$78,144.50

The court therefore fixes the lodestar at $78,144.50. The court has discretion to increase or decrease the lodestar by looking at factors including, but not limited to, the contingent risk, "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, or other circumstances in the case." (*PCLM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096; *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 160-161.)

Plaintiff requests a multiplier enhancement of 1.35, and Defendant seeks a negative multiplier. Given the totality of circumstances, the court exercises its discretion not to apply a multiplier at all – either positive or negative. Plaintiff bore the risk of non-recovery of payment in the appeal and the appeal dealt with a novel issue regarding venue. The issues were not complex, however, and the skill employed was not so extraordinary as to warrant an upward adjustment. Furthermore, the appeal was initially prompted by the trial court's error and abuse of discretion for which Defendant should not have to bear further expense. The court finds the foregoing hourly rates and number of hours reasonably compensates Plaintiff and her counsel for all time reasonably expended on the appeal.

<u>Costs and Expenses</u>: Plaintiff seeks a total of $1,870.71 in costs and expenses. Under Civil Code section 1794, subdivision (d), as the prevailing party, Plaintiff is entitled to all "costs and expenses" that were reasonably incurred in prosecuting the case, including items beyond the statutory costs enumerated in Code of Civil Procedure section 1033.5. (*Jensen v. BMW of North Am.* (1995) 35 Cal.App.4th 112, 137-138.) The Court of Appeal also awarded Plaintiff her costs on appeal. Defendant does not dispute the reasonableness of the costs and expenses Plaintiff identified. The court finds all such costs and

		expenses to be reasonable and therefore awards the entire amount of $1,870.71. _Total Award:_ When the amount of fees awarded ($78,144.50) is added to the costs and expenses awarded ($1,870.71) the total award is $80,015.21. Based on the foregoing, the trial level motion for attorney fees, costs, and expenses is **GRANTED**, and Plaintiff is awarded a total of $80,015.21 as against Defendant. _Notice:_ Plaintiff's counsel is ordered to give notice of these rulings.
14.	***Reid vs. Catullo*** *2019-01073251*	Before the court is the continued hearing on the motions to be relieved as counsel of record for defendants Daniel E. Catullo III, The City Drive Group, LLC, and The City Drive Films, LLC (collectively, Defendants) filed by attorney Joseph S. Schuchert of Schuchert Ngo, LLP. As set forth below, the unopposed motions are **GRANTED**. These motions originally came on for hearing on March 5, 2026, at which time the court continued the motions to April 9, 2026, because there was no proof of service filed showing the moving papers were served on Defendants. On April 9, 2026, the court continued the hearing again to May 14, 2026, because, although moving counsel filed a proof of service showing Defendants were served with the moving and supporting papers, the proof of service did not show Defendants were provided with timely statutory notice of the hearing on these motions pursuant to Code of Civil Procedure section 1005, subdivision (b). The court continued the hearing to ensure Defendants received timely statutory notice. Moving counsel was ordered to give notice of the court's ruling to all parties and file a proof of service thereof at least five court days prior to the hearing. (See Minute Order at ROA 451.) Moving counsel filed a notice of ruling which shows all parties were timely served with notice of the court's April 9, 2026 ruling. (ROA 455). Moving counsel has now corrected the procedural issues. The court finds good cause to grant the relief requested on the merits. The motions therefore are **GRANTED**. The orders granting relief are effective upon filing of a proof of service of the signed orders on Defendants. Moving counsel is ordered to give notice.
15.		